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SUPREME COURT OF TEXAS
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No. 25-0792

IN THE SUPREME COURT OF TEXAS

State of Texas, Petitioner

v.

F.M.V., a Juvenile, Respondent

On Petition for Review from
the Eighth Court of Appeals, El Paso

PETITIONER'S BRIEF ON THE MERITS

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TO THE SUPREME COURT OF TEXAS:

STATEMENT OF THE CASE

Nature of the Case:	This is a civil juvenile prosecution under the Texas Family Code.
Trial Court Judge:	Hon. Yahara Lisa Gutierrez
Trial Court:	65th District Court, El Paso County, Texas
Course of the Proceedings:	The State charged the juvenile via a determinate sentence petition with five counts of deadly conduct and discharge of a firearm in civil proceedings in the 65th District Court, a designated juvenile court. (C.R.44-46). A jury adjudicated him delinquent on all five counts on March 22, 2024. (C.R.229-233). The trial court conducted a disposition hearing and sentenced him to three years in the Texas Juvenile Justice Department. (C.R. 244-246). This appeal followed.
Trial Court Disposition:	The trial court adjudicated the juvenile delinquent and ordered him to serve three years in the Texas Juvenile Justice Department. (C.R.244-246).
Parties in the Court of Appeals:	F.M.V. (the juvenile) and the State of Texas
Appellate Court District:	8th Appellate District
Appellate Justices:	Salas Mendoza, C.J., Soto, Palafox, JJ.

Citation of the Appellate Opinion:	*Matter of F.M.V.*, 720 S.W.3d 494 (Tex. App. —El Paso 2025, pet. filed).
Appellate Court Disposition:	The Eighth Court of Appeals reversed and remanded the case for further proceedings. No hearings or motions are pending before the Court of Appeals. The State now moves the Supreme Court to review the opinion and judgment of the Court of Appeals.

STATEMENT OF JURISDICTION

This Court has jurisdiction over this appeal because the issue raised is important to the jurisprudence of the state, and it has already been considered by a court of appeals. Tex. Gov't Code §22.001(a), (b).

ISSUES PRESENTED

1. Whether a juvenile's signed incriminating statement is admissible under Texas Family Code § 51.095 where law enforcement officers were located within sight during the magistration process but were unable to hear or interact with the juvenile.

2. Whether the Court of Appeals violated established standards of appellate review by conducting a de novo visual review of bodycam footage and substituting its own judgment for the trial court's explicit, record-supported findings of historical fact.

INTRODUCTION

On a November evening in 2022, gunmen fired more than thirty bullets into the home of Maria de Los Angeles Ramirez and Leonardo Ramirez Torres. Fourteen-year-old juvenile F.M.V. later confessed to guiding two, armed accomplices to the home and pointing it out before the shooting began. These substantive facts are undisputed.

The procedural facts are equally straightforward. Following his detention, F.M.V. was thoroughly advised of his *Miranda* rights; provided a written confession; and brought before a magistrate to review and sign the statement.

When he was magistrated, the judge conducted the examination outside on the premises to keep him out of an adult facility. *See* Tex. Fam. Code § 51.12(f) (requiring that "a child detained in a building that contains a jail, ….be separated…from adults detained in the same building."); (Mot. Supp. R.R. Vol. I 8:16-25 (magistrate testifying that "the juvenile cannot come into the jail, so we go out."). Because F.M.V. was unrestrained on an open sidewalk, officers maintained a visual line-of-sight to fulfill their duty of keeping physical custody over a juvenile accused of a violent felony—a security precaution Magistrate Priddy judged necessary because she could

not assume responsibility for preventing an escape. (R.R. Vol. IV 50: 14-25; 51:1-8 (trial testimony)).

To guarantee an independent process, investigating officers remained stationed approximately 30 feet away—entirely out of earshot and unable to interact with F.M.V. while the magistrate conducted her examination. *See* (R.R. Vol. III: 178; 179:1-5 (trial testimony) (Detective Bastardo testifying that it was a "best practice" to keep the juvenile within "visual" but that he could not hear the conversation with Judge Priddy.)[1] F.M.V. felt comfortable enough to make corrections to his statement before signing it.

At trial, F.M.V. moved to suppress his confession, arguing that the mere sight of distant officers violated Texas Family Code § 51.095(a)(1)(B)(i), which mandates that no law enforcement officer be "present" during the magistrate's examination. The trial court conducted a full evidentiary hearing, issued explicit findings of fact, and concluded the statute was satisfied because the officers exerted no physical or auditory influence over the process.

[1] Detective Bastardo also testified that if the judge needed his assistance she would "have to raise her voice or call [him] over." Indeed, at one point the detective testified that Judge Priddy was, in fact, "yelling or she was talking very loudly to get [his] attention," demonstrating that they were so far away that normal speaking voices could not be heard. (R.R. Vol. III 179:2-9).

The Eighth Court of Appeals reversed, holding that visual line-of-sight ("in view") alone constitutes law enforcement "presence." In doing so, the court created an inflexible, bright-line rule, ignoring the broader statutory framework. It also improperly discarded the trial court's record-supported factual findings by conducting its own independent video review.

This case thus presents an issue of first impression regarding the proper statutory construction of Texas Family Code § 51.095: Does an officer's mere visual proximity—without auditory or physical influence—invalidate a juvenile's voluntary confession? In adopting a rigid line-of-sight test, "[t]he court of appeals appears to have committed an error of law of such importance to the state's jurisprudence that it should be corrected." Tex. R. App. P. 56.1(a)(5). And, by replacing a fact-bound inquiry with an inflexible rule and stripping trial courts of historical fact-finding deference, the Court of Appeals "has decided an important question of state law that should be resolved by this Court." *Id.* 56.1(a)(6). This Court should grant review to correct the Court of Appeals' inflexible standard; restore proper deference to trial court fact-finding; and clarify that Section 51.095 requires a contextual inquiry as to whether the magistrate's examination was free from law enforcement influence.

STATEMENT OF FACTS

The Offense and Investigation

On November 22, 2022, El Paso County Sheriff's deputies responded to a shooting in Canutillo, Texas, where more than thirty bullets struck the home of Maria De Los Angeles Ramirez and Leonardo Ramirez Torres. (R.R. Vol. II 160:1; R.R. Vol. III 54:24–55:6). Torres sustained an eye injury from metal shrapnel. (R.R. Vol. III 58:25). Investigating detectives located scene ballistics and surveillance video of a suspect, white Dodge Charger driven by an adult co-actor, Andre Gilmer. (R.R. Vol. III 78:16–18, 81:3–5, 84:15). A subsequent search warrant recovered weapons matching the scene's shell casings. (R.R. Vol. III 89:22–23).

The investigation focused on F.M.V.'s actions arising from an earlier altercation between F.M.V.'s friends and the victims' son. (R.R. Vol. III 78:7–12). F.M.V.'s mother, who had reported him as a runaway, provided information to Sheriff's Detective Bastardo. (R.R. Vol. III 37:19–22). Additionally, F.M.V.'s girlfriend stated that F.M.V. sent her a video of the shooting and admitted his involvement. (R.R. Vol. III 90:23–25).

Detention, Interrogation, and Magistration Timeline

Following his detention, F.M.V. was systematically provided statutory warnings before providing a written statement:

- December 1, 2022, 12:08 p.m. – **Detention:** Detective Bastardo picked up F.M.V. from his home and transported him directly to a designated Juvenile Processing Office at the Vinton Patrol Station. (R.R. Vol. I 52:16–25; R.R. Vol. III 104:13–15; C.R.145 ¶ I.b.).
- 12:49 p.m. – **Initial Warnings:** After F.M.V. expressed a desire to make a statement, Detective Bastardo administered initial *Miranda* warnings. F.M.V. executed a department juvenile warning sheet at 12:49 p.m. (R.R. Vol. I 53–55; R.R. Vol. I, State's Ex. 5; R.R. Vol. III 104:13–105:9).
- 1:00 p.m. – **Statutory Magistration:** Detective Bastardo transported F.M.V. downtown to the Jail Magistrate, ensuring F.M.V. remained isolated from adult detainees to prevent intimidation. (Mot. Supp. R.R. Vol. I 56:6–9, 15–18). Between 1:00 p.m. and 1:30 p.m., Magistrate Judge Sara Priddy administered official statutory warnings. (R.R. Vol. III 107:5–6). Outside the jail facility, Judge Priddy read those rights in sequence and questioned F.M.V. to ensure full comprehension, highlighting his right to terminate the interview. (Mot. Supp. R.R. Vol. I 12:13–25, 13:1–3, State's Ex. 1).
- 1:43 p.m. – **Statutory Waiver:** F.M.V. indicated a clear understanding of his rights and agreed to provide a statement. Law

enforcement officers remained at a distance, completely removed from the warning process. (R.R. Vol. I 9:21–25, 13:5–9). At 1:43 p.m., F.M.V. and Judge Priddy executed the Statutory Warnings of Juvenile by Magistrate pursuant to Texas Family Code § 51.095(a)(1)(A). (R.R. Vol. I, State's Ex. 1).

- 2:13 p.m. – **Written Statement:** F.M.V. was taken to the Juvenile Probation Department, where Detective Bastardo typed F.M.V.'s statement as F.M.V. spoke. (R.R. Vol. I 58:11–20; R.R. Vol. III 104:15). The written statement was completed at 2:13 p.m. (R.R. Vol. I, State's Ex. 2; R.R. Vol. I 59:1–7; R.R. Vol. III 110:22–113:1). F.M.V. stated that he was giving it "of his own free will." (Mot. Suppress, Vol. I, State's Ex. 2). F.M.V. did not attempt to correct this assertion when he met with Judge Priddy. *See* (Mot. Suppress, Vol. I 18:5-13) (Judge Priddy testifying that F.M.V. changed another part of the statement.)
- 3:22 p.m. – **Magistrate Review and Certification:** Judge Priddy met outside with F.M.V. to review the typed statement. Detective Bastardo withdrew approximately thirty feet away — remaining within visual range for security but entirely unable to hear or participate in the conversation. (Mot. Supp. R.R. Vol. I 60:5–16; R.R. Vol. III 105:7–9; R.R. Vol. III 156:2-4; Mot. Supp. Vo. I State's Ex. 3). F.M.V. reviewed

the document, crossed out one line he deemed inaccurate, and both he and the magistrate initialed the correction. (Mot. Supp. R.R. Vol. I 61:9–15; R.R. Vol. III 108:6–10). Judge Priddy signed the official statutory certification confirming that the statement was executed pursuant to Texas Family Code § 51.095(a)(1)(D). (Mot. Supp. R.R. Vol. I, State's Ex. 3). F.M.V. was then returned for intake processing at 3:30 p.m. (Mot. Supp. R.R. Vol. I 61:4–5).

Procedural History and Disposition

The State referred F.M.V. to the Juvenile Probation Department on five counts of Deadly Conduct via Discharge of a Firearm. (R.R. Vol. III 109:1–2; C.R.44-46). On March 22, 2024, a jury in the 65th District Court found F.M.V. delinquent on all five counts. (C.R.229-233; C.R.234). F.M.V. elected to have the trial judge determine disposition. On March 22, 2024, the court sentenced F.M.V. to a three-year commitment within the Texas Juvenile Justice Department. (C.R.244-46).

SUMMARY OF THE ARGUMENT

The Court of Appeals erred in its construction of Texas Family Code § 51.095 and by discarding the trial court's record-supported findings of fact.

The Court of Appeals' rigid "line-of-sight" definition of "presence" is inconsistent with the statutory scheme and unworkable in practice. Section

51.095 uses "presence" or "present" multiple times in subsection (a)(1)(B)(i) alone. Under canonical rules of construction, words repeated within a single provision must carry a uniform meaning. Defining "presence" as visual line-of-sight leads to absurd results when applied to the rest of the statute—such as allowing a magistrate standing down the block to satisfy the requirement of supervising a signature. Properly construed in context with the statutory scheme, "presence" requires physical-influence or sensory proximity, insulating the juvenile from auditory and physical pressure during magistration.

The lower court's analysis also departed from established standards of appellate review. On a motion to suppress, an appellate court owes strict deference to a trial court's historical fact-findings. Following an evidentiary hearing, the trial court explicitly found that Magistrate Priddy conducted an examination independent of law enforcement. The record supports those findings: investigating officers stood roughly 30 feet away outside of earshot, exerting no physical or conversational influence over the process—a lack of coercion underscored by F.M.V. successfully requesting and making corrections to his statement before signing. Rather than deferring to these facts, the Court of Appeals improperly conducted its own de novo video review to override the trial court.

Stationing officers at a distance of 30 feet synthesized two statutory mandates: preserving physical custody of a felony suspect under Section 51.01(1) and ensuring magisterial independence under Section 51.095(a)(1)(D). Because F.M.V. was unrestrained on an open sidewalk, officers could not abandon their custodial duties. Officers merely maintained necessary security without compromising the independent nature of the magistrate's examination. This Court should grant review, correct the appellate court's overreach, and affirm the trial court's order.

STANDARD OF REVIEW

As with the Court of Appeals, this Court reviews a trial court's ruling on a juvenile's motion to suppress under a bifurcated standard of review. *See* *In re L.J.*, No. 03-04-00807-CV, 2005 WL 3338302, *2 (Tex. App.—Austin Dec. 9, 2005, no pet.) (applying the same bifurcated standard in juvenile cases as in adult criminal proceedings), *citing* *In re R.J.H.*, 79 S.W.3d 1, 6 (Tex. 2002). An appellate court affords "almost total deference to a trial court's determination of the historical facts that the record supports especially when the trial court's fact findings are based on an evaluation of credibility and demeanor." *Guzman v. State*, 955 S.W.2d 85, 89 (Tex. Crim. App. 1997); *see also* *Hereford v. State*, 339 S.W.3d 111, 118 (Tex. Crim. App. 2011) (discussing deference). Under this deferential standard, the trial court

is the sole trier of fact and judge of the credibility of witnesses and weight to be given their testimony. *In re R.J.H.*, 79 S.W.3d at 6. The record and all reasonable inferences must be viewed in the light most favorable to the trial court's ruling. *Hereford*, 339 S.W.3d at 118. An appellate court does not substitute its judgment for that of the trial court; if the trial court's decision is reasonably supported by the record and correct under any theory of law applicable to the case, it must be upheld. *Estrada v. State*, 154 S.W.3d 604, 607 (Tex. Crim. App. 2005).

Questions of law and statutory interpretation are subject to de novo review. *In re J.A.B.*, 281 S.W.3d 62, 65 (Tex. App.—El Paso 2008, no pet.); *see also* *Loserth v. State*, 963 S.W.2d 770, 772 (Tex. Crim. App. 1998) (discussing de novo standard of review in criminal cases). In construing a statute, courts look to the plain meaning of its text to discern legislative intent. *State v. K.E.W.*, 315 S.W.3d 16, 21 (Tex. 2010). Statutory terms are not read in isolation but are construed in the context of the statutory scheme as a whole. *Id.* When the statutory language is clear, the text is determinative unless enforcing the plain language would lead to absurd results. *City of Rockwall v. Hughes*, 246 S.W.3d 621, 625-26 (Tex. 2008).

ARGUMENT

I. Non-courthouse magistration settings do not compromise the statutory safeguards of Section 51.095.

To an outsider, conducting a statutory magistration outside the traditional confines of a courtroom or judicial chambers may appear unconventional at first blush. *See* *Matter of F.M.V.*, 720 S.W.3d 494, 510 (Tex. App.—El Paso 2025, pet. filed). Below, the Court of Appeals conceded that "a courtroom or other confined space in a courthouse is not the only place a magistrate is permitted to meet with a juvenile...." *Id.* Yet the Court speculated that the Legislature intimated "that the magistrate would likely meet with a potentially dangerous juvenile within a *courthouse*." *Id.* (Emphasis added.) Yet Texas courts have consistently affirmed magistrations occurring in non-traditional settings—including jails and juvenile probation facilities—so long as the core statutory safeguards are preserved. *See*, *e.g.*, *McIntyre v. State*, 619 S.W.3d 311, 314-19 (Tex. App.—Fort Worth 2021, pet. ref'd) (initial and subsequent magistration in "Mansfield Public Safety Building" interview rooms); *Williams v. State*, 995 S.W.2d 754, 758 (Tex. App.—San Antonio 1999, no pet.) (initial and subsequent magistration in magistrate's office); *cf.* *Comer v. State*, 776 S.W.2d 191, 193, 197 (Tex. Crim. App. 1989) (concluding that magistration in the Justice of the Peace's home was appropriate but reversing on other

grounds).[2] In this case, the Court should reverse the judgment of the Court of Appeals because the setting did not compromise core statutory safeguards.

II. The Court of Appeals exceeded its authority by discarding the trial court's record-supported findings of fact.

The Court of Appeals acknowledged the bifurcated standard of review, applied to a motion to suppress. *Matter of F.M.V.*, 720 S.W.3d 494, 507 (Tex. App.—El Paso 2025, pet. filed). But it failed to apply with proper deference where—as here—Findings of Fact and Conclusions of law are present. (C.R.145-48).

Indeed, the Court of Appeals abandoned its duty to "view the evidence in the light most favorable to the trial court's ruling…as long as those findings are supported by the record." *State v. Cullen*, 195 S.W.3d 696, 698 (Tex. Crim. App. 2006) (*citing* *State v. Ross*, 32 S.W.3d 853, 855 (Tex. Crim. App. 2000)); *see also* *Matter of F.M.V.*, 720 S.W.3d at 507. Following a full evidentiary hearing where it weighed witness demeanor and reviewed digital evidence, the trial court entered explicit Findings of Fact:

1. The juvenile signed his statement in front of Judge Priddy with no law enforcement present.

2. Judge Priddy examined the Juvenile independent of any law enforcement officer or prosecuting attorney.

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[2] *See also* *Baptist Vie Le v. State*, 993 S.W.2d 650, 651, 656 (Tex. Crim. App. 1999) (juvenile magistrated by two different magistrates) (McCormick, P.J., *dissenting*); *Le v. State*, No. 14-94-01265-CR, 2000 WL 1335290 (Tex. App.—Houston [14th Dist.] Sept. 14, 2000, pet. ref'd) (finding no harm on remand).

> 3. Judge Priddy concluded that the Juvenile understood the nature and contexts [*sic*] of his statement and has knowingly, intelligently, and voluntarily waived his rights. (C.R.146 at ¶¶ I. p, q, r.)

Instead of determining whether these findings fell "outside the zone of reasonable disagreement," the Court conducted an independent, *de novo* re-evaluation of the bodycam footage to declare an "undeniable police presence" as a matter of law. *Hereford v. State*, 339 S.W.3d 111, 118 (Tex. Crim. App. 2011) ("zone of reasonable disagreement"); *See Matter of F.M.V.*, 720 S.W.3d at 512 ("undeniable police presence").

While the ultimate definition of statutory "presence" remains a pure question of law for this Court to decide, the Court of Appeals reached its legal conclusion by failing to respect the foundational historical facts found by the trial court. The physical arrangement of the street, the 30-foot distance of the investigating officers, and the undisputed fact that the officers were entirely away from the magistration are historical, situational facts. *See Matter of F.M.V.*, 720 S.W.3d at 503. By substituting its own continuous review of a video to override the trial court's explicit finding of non-presence, the Court of Appeals transformed a highly contextual, fact-bound inquiry into an inflexible question of law. *See Id*. at 503. Indeed, the lower court's own language exposes its faulty standard, concluding that under these

circumstances, *"we cannot say"* that no law enforcement officers were "present." *Id.* at 512. That uncertainty is precisely the point: if an appellate court "cannot say" with absolute certainty because a record is open to interpretation, it is legally bound to defer to the historical findings of the trial court.

This Court has long held that a reviewing court does not sit as a secondary trier of fact. Under the controlling standard for digital evidence, an appellate court may only disregard a trial court's factual finding if a video recording "indisputably contradicts" that finding. *See* State v. Duran, 396 S.W.3d 563 (Tex. Crim. App. 2013). In *Duran*, the Court of Criminal Appeals reinstated the trial court's suppression of evidence because, while there was "indisputable visual evidence" that the center stripe violation occurred before the DWI stop, there was "no indisputable visual evidence that [the officer]" actually saw the violation when he made the stop. *Id.* at 574.

Here, the bodycam footage did not indisputably contradict the trial court. Instead, it confirmed the historical layout: the investigating officers were stationed thirty feet away. While the camera's lens can record visual lines of sight, it cannot evaluate a juvenile's internal psychological independence, nor can it capture the auditory limitations created by that

distance. By using a video recording to convert a nuanced, sensory inquiry[3] into a *per se* visual rule, the Court of Appeals overstepped the standard of review and stripped the trial court of its statutory role as the sole judge of credibility and demeanor.

III. The Court of Appeals' line-of-sight ("in view") definition of "presence" is inconsistent with the statutory scheme and unworkable in practice.

There is a balance of purposes in the statute: Children are provided added protections to ensure their legal rights are recognized and enforced, but at the same time the welfare of the community is protected by allowing juveniles to make custodial statements, subject to the oversight of the magistrate. *See* Tex. Fam. Code Ann. § 51.01. That is exactly what occurred here.

Under Texas Family Code § 51.095, a child's statement is admissible in evidence if the child received warnings from a magistrate prior to making the statement, and the child signed the statement in the presence of a magistrate judge with no law enforcement officer or prosecuting attorney "present." Tex. Fam. Code § 51.095(a)(1)(A), (a)(1)(B)(i). But the statute does not squarely define law enforcement "presence."

[3] The record suggests that there is no (audible) recording of the interaction with Judge Priddy. *See* (R.R. Vol. III 227: 16-22 (Defense expert testifying that he "wasn't privy" to the audio.)).

Here, the Court of Appeals held that "the definition of the term "present" as being "in view" comports with a reading of § 51.095 as a whole and its purpose." *Matter of F.M.V.*, 720 S.W.3d at 510. However, the Court analyzed the application of that definition in only one of several uses of the words "present" or "presence" in the statute. The Court of Appeals held that officers were "present," in violation of the statute, when the magistrate reviewed F.M.V.'s statement because "the fact that the officers were in F.M.V.'s view throughout the proceeding—and at times in his immediate presence—demonstrates an undeniable police presence." *Id.* at 512.

But Appellate courts have defined "presence" in other contexts—such as warrantless arrests, criminal sentencing and jurisdictional disputes—and concluded "presence" means both physical and sensory proximity. *See Tates v. State*, 721 S.W.3d 268 (Tex. Crim. App. 2025), *reh'g* denied (Aug. 20, 2025) (summary, *infra*). For example, some Texas courts have recognized the concept of "within reach of an officer's senses" which does not require physical proximity in cases concerning warrantless arrests. *See Thomas v. State*, 864 S.W.2d 193, 196 (Tex. App.—Texarkana 1993, pet. ref'd) (discussing that officer "presence" needed to authorize a warrantless arrest included "previously acquired knowledge," plus "personal observations.") This Court should correct the Court of Appeals' definition, which restricts

"presence" to mere line-of-sight ("in-view") visibility and instead affirm that "presence" requires physical and sensory proximity.

A. Criminal caselaw generally interprets "presence" as sensory/physical.

In criminal contexts such as proceedings or sentencing, Texas courts have found "presence" to mean close physical proximity – within reach of the senses of sight and sound. Yet, here, the Court of Appeals concluded that "presence" in Family Code § 51.095(a)(1)(B)(i) means "in line of sight." *See Matter of F.M.V.*, 720 S.W.3d at 510 (citing dictionary definition of "present" as "being in view or at hand"). This holding does not square with existing caselaw in criminal matters:

- In *Tates,* a defendant appeared remotely via videoconferencing during the punishment phase of his trial. *Tates v. State*, 721 S.W.3d 268, 270 (Tex. Crim. App. 2025). The court discussed the right of a defendant to be physically present during sentencing pursuant to Article 33 of the Code of Criminal Procedure, holding "presence" to mean physical, "in person," rather than virtual attendance. *Id. at* 281.

- Again, in *Pittman v. State*, 683 S.W.3d 433, 439 (Tex. App.—San Antonio 2023, pet. granted), the San Antonio Court of Appeals stressed the importance of physical presence in criminal sentencing, holding that sentencing via videoconference violated the defendant's statutory right to be physically present under Article 42.03 § 1(a) of the Texas Code of Criminal Procedure. *Id.*

So, in the context of criminal proceedings, some courts have concluded that "presence" typically refers to physical attendance unless explicitly waived. But other courts have made space for "in view" presence.

B. Even where "presence" is extended beyond physical attendance, courts have tied it to the reach of human senses.

Texas courts have recognized that "presence" can extend past immediate physical contact, but they have done so by looking to sensory awareness and coordinated observation, not an absolute visual line-of-sight rule. For example, the term "presence" is frequently litigated in the context of warrantless arrests. Article 14.03(d) of the Texas Code of Criminal Procedure permits peace officers to arrest individuals without a warrant if an offense is committed in their "presence or view." Tex. Code Crim. Proc. art. 14.03. Courts have interpreted "presence" there to mean that the offense occurs within reach of the officer's senses, which does not inherently require a single officer to maintain direct, uninterrupted visual observation of every element. *Thomas v. State*, 864 S.W.2d 193, 196 (Tex. App.—Texarkana 1993, pet. ref'd). The *Thomas* court noted that (for purposes of article 14.03), "previously acquired knowledge and experience when coupled with present personal observations may cause an officer to believe that an offense is being committed in the officer's presence." *Id.* (cleaned up) (citation omitted).

Indeed, the Court of Criminal Appeals has held that an undercover officer who is part of an active law enforcement team remains "present" at an offense under Code of Criminal Procedure Article 14.01 even when parked blocks away out of visual range —not because of mere proximity, but because

the officer maintained active direction, communication, and functional participation in the event. *See* *Astran v. State*, 799 S.W.2d 761, 762-64 (Tex. Crim. App. 1990). Thus, under *Astran*, "presence" requires active sensory reach, communication, or influence—not mere line-of-sight visibility.

Unlike the active, radio-connected officer in *Astran*, the investigating officers here were deliberately stationed out of earshot, maintained no communication, and exerted zero influence over the magistration. Yet here the Court of Appeals imposed a sweeping, visual-only, line-of-sight standard when the magistrate accepted the juvenile's statement. *Matter of F.M.V.*, 720 S.W.3d at 510. But a pure line-of-sight standard does not square with the facial aims of the statute: to remove the coercive pressure of law enforcement when a magistrate takes an incriminating statement, while still providing for the juvenile's continued safe custody. *See* Tex. Fam. Code § 51.095(a)(1)(B)(i) (requiring that law enforcement not be "present" when accepting a signed statement yet permitting the magistrate to determine that the presence of an officer is necessary for the magistrate's security). When viewed this way, the Court of Appeals' definition is unworkable, particularly in view of the other uses of "presence" in the same article of the Family Code.

C. The Court of Appeals' definition is unworkable when applied to the other uses of "presence" in the statute.

The Court of Appeals concluded that "presence" in § 51.095(a)(1)(B)(i) means "in line of sight" ("in view"), stating, "The definition of the term 'present' as being 'in view' comports with a reading of § 51.095 as a whole and its purpose." *Matter of F.M.V.*, 720 S.W.3d at 510 (*citing* *Shipp v. State*, 331 S.W.3d 433, 437-38 (Tex. Crim. App. 2011)) (recognizing that the meaning of a term in a statute may be determined by "the context of the statute as a whole [and] by a consideration of its purpose"). The Court of Appeals was right to cite *Shipp*. Yet it failed to heed *Shipp's* call to analyze § 51.095 in its entirety when applying this definition of "presence."

The terms "present" or "presence" occur multiple times throughout the statute. Subsection (a)(1)(B)(i) alone uses the terms "present" or "presence" five distinct times within a single sentence:

1. "signed in the *presence* [Use 1] of a magistrate";
2. "with no law enforcement officer or prosecuting attorney *present* [Use 2]";
3. "require a bailiff or a law enforcement officer… to be *present* [Use 3]";
4. "if the magistrate determines that the *presence* [Use 4] of the bailiff or law enforcement officer is necessary…"; and
5. "may not carry a weapon in the *presence* [Use 5] of the child." [Emphasis added.]

And the “presence” requirement repeats in adjacent subsections, requiring an attorney to be "present" under subsection (a)(1)(A)(ii) and the signature to occur in the magistrate's "presence" under subsection (a)(1)(C).

Yet the Court of Appeals applied its line-of-sight definition exclusively to the second use in subsection (a)(1)(B)(i)—the prohibition on officers being "present" during signing—without considering how that definition destroys the harmony of the surrounding uses:

- Under the first use (and subsection (a)(1)(C)), the child must sign in the magistrate's "presence." If "presence" means mere visual line-of-sight, a magistrate standing down the block would satisfy the statute—an impossible result that prevents the magistrate from evaluating voluntariness.

- Under the third and fourth uses, a magistrate may require an officer to be "present" for security. Line-of-sight positioning across a parking lot provides no meaningful physical protection.

  Under the fifth use, an officer may not carry a weapon in the "presence" of the child. Interpreting this as "line-of-sight" would mean an armed officer 100 yards away in public view violates the statute, while an armed officer behind a curtain in the same room does not.

Courts presume that words used multiple times in the same statutory provision carry the same meaning throughout. *See* *Tex. Dep't of Transp. v. Needham*, 82 S.W.3d 314, 318 (Tex. 2002) (citation omitted) (“[C]ourts should not give an undefined statutory term a meaning out of harmony or inconsistent with other provisions, although it might be susceptible of such a construction if standing alone.” (civil case)). And with good reason: If a

physical-influence proximity standard is required to satisfy four out of the five uses of "presence" or "present" in subsection (a)(1)(B)(i), that same meaning must govern the fifth. Applying this uniform construction preserves statutory harmony: it insulates juveniles from auditory and physical pressure during magistration without creating an unworkable per se visual ban for officers maintaining custody. Under this statutory construction, because the investigating officers here were 30 feet away and outside earshot, Section 51.095(a)(1)(B)(i) was fully satisfied.

IV. The Trial Court concluded that the magistrate provided a neutral, independent examination of F.M.V.'s statement.

The purpose of the procedures in Family Code Section 51.095 is to ensure that a magistrate's examination of a child is "independent" of any law enforcement officer or prosecuting attorney. *See* Tex. Fam. Code § 51.095(a)(1)(D). The trial court concluded that F.M.V. received exactly that: an independent examination by a magistrate who accepted his statement outside the "presence" of law enforcement. (C.R.146).

The Appellate court concluded otherwise because "law enforcement officers were present, some of whom were armed, without any showing that their presence was necessary for the magistrate's personal safety." *Matter of F.M.V.*, 720 S.W.3d 494, 509 (Tex. App.—El Paso 2025, pet. filed). This puts the statutory analysis backwards. The Court of Appeals assumed that

because Judge Priddy did not establish a need for protective security under the statute's safety exception, the distant officers were automatically "present." *See id*. But the safety exception only applies to officers brought *inside* the magistration environment; it does not transform distant, non-participating officers who remained 30 feet away into a statutory violation.

The Court of Appeals' rigid visual rule also ignores the uncontradicted record evidence establishing why officers maintained a distant visual reference of F.M.V. The Juvenile Justice Code must "be construed to provide for the protection of the public and public safety [.]" Tex. Fam. Code § 51.01(1). Law enforcement officers thus face a continuous duty to protect public safety and preserve physical custody over detained individuals. Here, F.M.V. was in lawful custody for a violent felony offense involving a firearm, and he remained unrestrained on an open sidewalk during his examination.

As Magistrate Priddy testified, she could not assume responsibility for preventing an escape, making visual security by officers necessary while F.M.V. remained in legal custody outside the facility. (R.R. Vol. IV 50:14–25, 51:1–8). Detective Bastardo similarly confirmed that maintaining visual line-of-sight from 30 to 40 feet away was a "best practice" to ensure physical custody while stepping outside earshot so as not to hear or interfere with the conversation. (R.R. Vol. III 178:1, 179:1–5). Stationing officers at this

distance synthesized two statutory mandates: preserving physical custody of a violent felony suspect under Section 51.01(1) and ensuring magisterial independence under Section 51.095(a)(1)(D). Because F.M.V. was unrestrained on a public sidewalk, officers could not abandon their custodial duties; by remaining outside earshot, they maintained necessary security without exerting physical or conversational influence over the examination.

The record supports the trial court's finding of an independent examination under Section 51.095(a)(1)(D). Unable to hear or participate, officers exercised zero influence over the process—a reality F.M.V. demonstrated when he comfortably requested and initialed corrections to his written statement before signing.

The Court of Appeals reached a contrary result only by turning the statute on its head—reasoning that because the officers were not needed for Judge Priddy's *personal* safety, their distant line-of-sight visual automatically constituted an illegal "presence." In doing so, the court below ignored the record-supported custody realities, stripped the trial court of its fact-finding deference, and converted a custody precaution into an automatic statutory violation.

CONCLUSION AND PRAYER

This Court has never had the opportunity to address the meaning of "presence" in this section of the Family Code, but it should do so now. "Presence" should not be read in isolation to mean "in view," "line of sight," or "per se visual" presence. That reading does structural violence to the other uses of "presence" in the statute.

Furthermore, while the ultimate construction of Texas Family Code Section 51.095 presents a pure question of law for this Court, the Court of Appeals arrived at its unworkable standard only by abandoning its clear duty to defer to the trial court's explicit, record-supported Findings of Fact and Conclusions of Law. The historical facts established that the juvenile was examined by the magistrate independently, such that officers could not participate in, or influence, the conversation. Because the Court of Appeals viewed the case through a video lens, rather than the record as a whole—and without deference to the findings of the trial court—it exceeded the proper boundaries of appellate review.

For all these reasons, Petitioner, the State of Texas, prays that this Court **reverse** the judgment of the Court of Appeals and **affirm** the delinquency adjudication of the trial court.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on July 29, 2026, a true and correct copy of the foregoing pleading was filed electronically through EFile.TXCourts electronic filing system and electronically served upon the attorney for the Juvenile, Kelli Childress at k.childress@epcountytx.gov via electronic mail, Rene Vargas at ReVargas@epcountytx.gov, and Todd D. Morten t.morten@epcountytx.gov.

/s/ Kevin McCary
Kevin McCary

CERTIFICATE OF COMPLIANCE

Pursuant to the Texas Rule of Appellate Procedure 9.4(i)(1), (3), I hereby certify that this Appellate Brief contains **5,719** words. This is a computer-generated document created in Microsoft word, using 14-point typeface for all text and 12-point footnotes. In making this certificate, I am relying on the word count provided by the software used to prepare this document.

/s/ Kevin McCary
Kevin McCary

APPENDIX

1. Tex. Gov't Code §22.001(a), (b)
2. Tex Fam. Code § 51.12 (f)
3. Tex Fam. Code § 51.095
4. Tex Fam. Code § 51.01
5. Article 42.03 § 1(a) of the Texas Code of Criminal Procedure
6. Article 14.03(d) of the Texas Code of Criminal Procedure
7. Article 14.01 of the Texas Code of Criminal Procedure

APPENDIX 1

Vernon's Texas Statutes and Codes Annotated
Family Code (Refs & Annos)
Title 3. Juvenile Justice Code (Refs & Annos)
Chapter 51. General Provisions (Refs & Annos)

V.T.C.A., Family Code § 51.01

§ 51.01. Purpose and Interpretation

Currentness

This title shall be construed to effectuate the following public purposes:

(1) to provide for the protection of the public and public safety;

(2) consistent with the protection of the public and public safety:

(A) to promote the concept of punishment for criminal acts;

(B) to remove, where appropriate, the taint of criminality from children committing certain unlawful acts; and

(C) to provide treatment, training, and rehabilitation that emphasizes the accountability and responsibility of both the parent and the child for the child's conduct;

(3) to provide for the care, the protection, and the wholesome moral, mental, and physical development of children coming within its provisions;

(4) to protect the welfare of the community and to control the commission of unlawful acts by children;

(5) to achieve the foregoing purposes in a family environment whenever possible, separating the child from the child's parents only when necessary for the child's welfare or in the interest of public safety and when a child is removed from the child's family, to give the child the care that should be provided by parents; and

(6) to provide a simple judicial procedure through which the provisions of this title are executed and enforced and in which the parties are assured a fair hearing and their constitutional and other legal rights recognized and enforced.

Credits

Acts 1973, 63rd Leg., p. 1460, ch. 544, § 1, eff. Sept. 1, 1973. Amended by Acts 1995, 74th Leg., ch. 262, § 2, eff. Jan. 1, 1996.

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Notes of Decisions (47)

V. T. C. A., Family Code § 51.01, TX FAMILY § 51.01
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APPENDIX 2

Vernon's Texas Statutes and Codes Annotated
Family Code (Refs & Annos)
Title 3. Juvenile Justice Code (Refs & Annos)
Chapter 51. General Provisions (Refs & Annos)

V.T.C.A., Family Code § 51.12

§ 51.12. Place and Conditions of Detention

Effective: January 1, 2025
Currentness

(a) Except as provided by Subsection (h), a child may be detained only in a:

(1) juvenile processing office in compliance with Section 52.025;

(2) place of nonsecure custody in compliance with Article 45A.453, Code of Criminal Procedure;

(3) certified juvenile detention facility that complies with the requirements of Subsection (f);

(4) secure detention facility as provided by Subsection (j);

(5) county jail or other facility as provided by Subsection (l); or

(6) nonsecure correctional facility as provided by Subsection (j-1).

(b) The proper authorities in each county shall provide a suitable place of detention for children who are parties to proceedings under this title, but the juvenile board shall control the conditions and terms of detention and detention supervision and shall permit visitation with the child at all reasonable times.

(b-1) A pre-adjudication secure detention facility may be operated only by:

(1) a governmental unit in this state as defined by Section 101.001, Civil Practice and Remedies Code; or

(2) a private entity under a contract with a governmental unit in this state.

(c) In each county, each judge of the juvenile court and a majority of the members of the juvenile board shall personally inspect all public or private juvenile pre-adjudication secure detention facilities that are located in the county at least annually and shall certify in writing to the authorities responsible for operating and giving financial support to the facilities and to the Texas Juvenile

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Justice Department that the facilities are suitable or unsuitable for the detention of children. In determining whether a facility is suitable or unsuitable for the detention of children, the juvenile court judges and juvenile board members shall consider:

(1) current monitoring and inspection reports and any noncompliance citation reports issued by the department, including the report provided under Subsection (c-1), and the status of any required corrective actions;

(2) current governmental inspector certification regarding the facility's compliance with local fire codes;

(3) current building inspector certification regarding the facility's compliance with local building codes;

(4) for the 12-month period preceding the inspection, the total number of allegations of abuse, neglect, or exploitation reported by the facility and a summary of the findings of any investigations of abuse, neglect, or exploitation conducted by the facility, a local law enforcement agency, and the department;

(5) the availability of health and mental health services provided to facility residents;

(6) the availability of educational services provided to facility residents; and

(7) the overall physical appearance of the facility, including the facility's security, maintenance, cleanliness, and environment.

(c-1) The Texas Juvenile Justice Department shall inspect each public or private juvenile pre-adjudication secure detention facility. The department shall provide a report to each juvenile court judge presiding in the same county as an inspected facility indicating whether the facility is suitable or unsuitable for the detention of children in accordance with:

(1) the requirements of Subsections (a), (f), and (g); and

(2) minimum professional standards for the detention of children in pre-adjudication secure confinement promulgated by the department or, at the election of the juvenile board of the county in which the facility is located, the current standards promulgated by the American Correctional Association.

(d) Except as provided by Subsections (j) and (l), a child may not be placed in a facility that has not been certified under Subsection (c) as suitable for the detention of children and registered under Subsection (i). Except as provided by Subsections (j) and (l), a child detained in a facility that has not been certified under Subsection (c) as suitable for the detention of children or that has not been registered under Subsection (i) shall be entitled to immediate release from custody in that facility.

(e) If there is no certified place of detention in the county in which the petition is filed, the designated place of detention may be in another county.

(f) A child detained in a building that contains a jail, lockup, or other place of secure confinement, including an alcohol or other drug treatment facility, shall be separated by sight and sound from adults detained in the same building. Children

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and adults are separated by sight and sound only if they are unable to see each other and conversation between them is not possible. The separation must extend to all areas of the facility, including sally ports and passageways, and those areas used for admission, counseling, sleeping, toileting, showering, dining, recreational, educational, or vocational activities, and health care. The separation may be accomplished through architectural design. A person who has been transferred for prosecution in criminal court under Section 54.02 and is under 17 years of age is considered a child for the purposes of this subsection.

(g) Except for a child detained in a juvenile processing office, a place of nonsecure custody, a secure detention facility as provided by Subsection (j), or a facility as provided by Subsection (l), a child detained in a building that contains a jail or lockup may not have any contact with:

(1) part-time or full-time security staff, including management, who have contact with adults detained in the same building; or

(2) direct-care staff who have contact with adults detained in the same building.

(h) This section does not apply to a person:

(1) who has been transferred to criminal court for prosecution under Section 54.02 and is at least 17 years of age; or

(2) who is at least 17 years of age and who has been taken into custody after having:

(A) escaped from a juvenile facility operated by or under contract with the Texas Juvenile Justice Department; or

(B) violated a condition of release under supervision of the department.

(i) Except for a facility as provided by Subsection (l), a governmental unit or private entity that operates or contracts for the operation of a juvenile pre-adjudication secure detention facility under Subsection (b-1) in this state shall:

(1) register the facility annually with the Texas Juvenile Justice Department; and

(2) adhere to all applicable minimum standards for the facility.

(j) After being taken into custody, a child may be detained in a secure detention facility until the child is released under Section 53.01, 53.012, or 53.02 or until a detention hearing is held under Section 54.01(a), regardless of whether the facility has been certified under Subsection (c), if:

(1) a certified juvenile detention facility is not available in the county in which the child is taken into custody;

(2) the detention facility complies with:

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(A) the short-term detention standards adopted by the Texas Juvenile Justice Department; and

(B) the requirements of Subsection (f); and

(3) the detention facility has been designated by the county juvenile board for the county in which the facility is located.

(j-1) After being taken into custody, a child may be detained in a nonsecure correctional facility until the child is released under Section 53. 01, 53.012, or 53.02 or until a detention hearing is held under Section 54.01(a), if:

(1) the nonsecure correctional facility has been appropriately registered and certified;

(2) a certified secure detention facility is not available in the county in which the child is taken into custody;

(3) the nonsecure correctional facility complies with the short-term detention standards adopted by the Texas Juvenile Justice Department; and

(4) the nonsecure correctional facility has been designated by the county juvenile board for the county in which the facility is located.

(k) If a child who is detained under Subsection (j) or (l) is not released from detention at the conclusion of the detention hearing for a reason stated in Section 54.01(e), the child may be detained after the hearing only in a certified juvenile detention facility.

(l) A child who is taken into custody and required to be detained under Section 53.02(f) may be detained in a county jail or other facility until the child is released under Section 53.02(f) or until a detention hearing is held as required by Section 54.01(p), regardless of whether the facility complies with the requirements of this section, if:

(1) a certified juvenile detention facility or a secure detention facility described by Subsection (j) is not available in the county in which the child is taken into custody or in an adjacent county;

(2) the facility has been designated by the county juvenile board for the county in which the facility is located;

(3) the child is separated by sight and sound from adults detained in the same facility through architectural design or time-phasing;

(4) the child does not have any contact with management or direct-care staff that has contact with adults detained in the same facility on the same work shift;

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(5) the county in which the child is taken into custody is not located in a metropolitan statistical area as designated by the United States Bureau of the Census; and

(6) each judge of the juvenile court and a majority of the members of the juvenile board of the county in which the child is taken into custody have personally inspected the facility at least annually and have certified in writing to the Texas Juvenile Justice Department that the facility complies with the requirements of Subdivisions (3) and (4).

(m) The Texas Juvenile Justice Department may deny, suspend, or revoke the registration of any facility required to register under Subsection (i) if the facility fails to:

(1) adhere to all applicable minimum standards for the facility; or

(2) timely correct any notice of noncompliance with minimum standards.

Credits

Acts 1973, 63rd Leg., p. 1460, ch. 544, § 1, eff. Sept. 1, 1973. Amended by Acts 1975, 64th Leg., p. 2155, ch. 693, §§ 10, 11, eff. Sept. 1, 1975; Acts 1985, 69th Leg., ch. 293, § 1, eff. Aug. 26, 1985; Acts 1987, 70th Leg., ch. 149, § 31, eff. Sept. 1, 1987; Acts 1995, 74th Leg., ch. 262, § 12, eff. Jan. 1, 1996; Acts 1997, 75th Leg., ch. 772, § 1, eff. Sept. 1, 1997; Acts 1997, 75th Leg., ch. 1374, § 1, eff. Sept. 1, 1997; Acts 1999, 76th Leg., ch. 62, § 6.07, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 232, § 3, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1477, § 2, eff; Sept. 1, 1999; Acts 2001, 77th Leg., ch. 1297, § 10, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 1514, § 13, eff. Sept. 1, 2001; Acts 2007, 80th Leg., ch. 263, § 5, eff. June 8, 2007; Acts 2011, 82nd Leg., ch. 1087 (S.B. 1209), § 1, eff. Sept. 1, 2011; Acts 2013, 83rd Leg., ch. 1299 (H.B. 2862), § 10, eff. Sept. 1, 2013; Acts 2015, 84th Leg., ch. 734 (H.B. 1549), § 44, eff. Sept. 1, 2015; Acts 2023, 88th Leg., ch. 765 (H.B. 4504), § 2.048, eff. Jan. 1, 2025; Acts 2023, 88th Leg., ch. 950 (S.B. 1727), § 7, eff. Sept. 1, 2023.

Notes of Decisions (19)

V. T. C. A., Family Code § 51.12, TX FAMILY § 51.12
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APPENDIX 3

Vernon's Texas Statutes and Codes Annotated
Government Code (Refs & Annos)
Title 2. Judicial Branch (Refs & Annos)
Subtitle A. Courts
Chapter 22. Appellate Courts
Subchapter A. Supreme Court

V.T.C.A., Government Code § 22.001

§ 22.001. Jurisdiction

Effective: September 1, 2017
Currentness

(a) The supreme court has appellate jurisdiction, except in criminal law matters, of an appealable order or judgment of the trial courts if the court determines that the appeal presents a question of law that is important to the jurisprudence of the state. The supreme court's jurisdiction does not include cases in which the jurisdiction of the court of appeals is made final by statute.

(b) A case over which the court has jurisdiction under Subsection (a) may be carried to the supreme court by petition for review.

(c) Except as provided by this subsection or other law, an appeal may be taken to the supreme court only if the appeal was first brought to the court of appeals. An appeal may be taken directly to the supreme court from an order of a trial court granting or denying an interlocutory or permanent injunction on the ground of the constitutionality of a statute of this state.

(d) The supreme court has the power, on affidavit or otherwise, as the court may determine, to ascertain the matters of fact that are necessary to the proper exercise of its jurisdiction.

(e) Repealed by Acts 2017, 85th Leg., ch. 150 (H.B. 1761), § 4(1).

Credits
Acts 1985, 69th Leg., ch. 480, § 1, eff. Sept. 1, 1985. Amended by Acts 1987, 70th Leg., ch. 1106, § 1, eff. June 20, 1987; Acts 2003, 78th Leg., ch. 204, § 1.04, eff. Sept. 1, 2003; Acts 2017, 85th Leg., ch. 150 (H.B. 1761), §§ 1, 4(1), eff. Sept. 1, 2017.

Notes of Decisions (289)

V. T. C. A., Government Code § 22.001, TX GOVT § 22.001
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APPENDIX 4

Vernon's Texas Statutes and Codes Annotated
Family Code (Refs & Annos)
Title 3. Juvenile Justice Code (Refs & Annos)
Chapter 51. General Provisions (Refs & Annos)

V.T.C.A., Family Code § 51.095

§ 51.095. Admissibility of a Statement of a Child

Effective: September 1, 2011
Currentness

(a) Notwithstanding Section 51.09, the statement of a child is admissible in evidence in any future proceeding concerning the matter about which the statement was given if:

(1) the statement is made in writing under a circumstance described by Subsection (d) and:

(A) the statement shows that the child has at some time before the making of the statement received from a magistrate a warning that:

(i) the child may remain silent and not make any statement at all and that any statement that the child makes may be used in evidence against the child;

(ii) the child has the right to have an attorney present to advise the child either prior to any questioning or during the questioning;

(iii) if the child is unable to employ an attorney, the child has the right to have an attorney appointed to counsel with the child before or during any interviews with peace officers or attorneys representing the state; and

(iv) the child has the right to terminate the interview at any time;

(B) and:

(i) the statement must be signed in the presence of a magistrate by the child with no law enforcement officer or prosecuting attorney present, except that a magistrate may require a bailiff or a law enforcement officer if a bailiff is not available to be present if the magistrate determines that the presence of the bailiff or law enforcement officer is necessary for the personal safety of the magistrate or other court personnel, provided that the bailiff or law enforcement officer may not carry a weapon in the presence of the child; and

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(ii) the magistrate must be fully convinced that the child understands the nature and contents of the statement and that the child is signing the same voluntarily, and if a statement is taken, the magistrate must sign a written statement verifying the foregoing requisites have been met;

(C) the child knowingly, intelligently, and voluntarily waives these rights before and during the making of the statement and signs the statement in the presence of a magistrate; and

(D) the magistrate certifies that the magistrate has examined the child independent of any law enforcement officer or prosecuting attorney, except as required to ensure the personal safety of the magistrate or other court personnel, and has determined that the child understands the nature and contents of the statement and has knowingly, intelligently, and voluntarily waived these rights;

(2) the statement is made orally and the child makes a statement of facts or circumstances that are found to be true and tend to establish the child's guilt, such as the finding of secreted or stolen property, or the instrument with which the child states the offense was committed;

(3) the statement was res gestae of the delinquent conduct or the conduct indicating a need for supervision or of the arrest;

(4) the statement is made:

(A) in open court at the child's adjudication hearing;

(B) before a grand jury considering a petition, under Section 53.045, that the child engaged in delinquent conduct; or

(C) at a preliminary hearing concerning the child held in compliance with this code, other than at a detention hearing under Section 54.01; or

(5) subject to Subsection (f), the statement is made orally under a circumstance described by Subsection (d) and the statement is recorded by an electronic recording device, including a device that records images, and:

(A) before making the statement, the child is given the warning described by Subdivision (1)(A) by a magistrate, the warning is a part of the recording, and the child knowingly, intelligently, and voluntarily waives each right stated in the warning;

(B) the recording device is capable of making an accurate recording, the operator of the device is competent to use the device, the recording is accurate, and the recording has not been altered;

(C) each voice on the recording is identified; and

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(D) not later than the 20th day before the date of the proceeding, the attorney representing the child is given a complete and accurate copy of each recording of the child made under this subdivision.

(b) This section and Section 51.09 do not preclude the admission of a statement made by the child if:

(1) the statement does not stem from interrogation of the child under a circumstance described by Subsection (d); or

(2) without regard to whether the statement stems from interrogation of the child under a circumstance described by Subsection (d), the statement is:

(A) voluntary and has a bearing on the credibility of the child as a witness; or

(B) recorded by an electronic recording device, including a device that records images, and is obtained:

(i) in another state in compliance with the laws of that state or this state; or

(ii) by a federal law enforcement officer in this state or another state in compliance with the laws of the United States.

(c) An electronic recording of a child's statement made under Subsection (a)(5) or (b)(2)(B) shall be preserved until all juvenile or criminal matters relating to any conduct referred to in the statement are final, including the exhaustion of all appeals, or barred from prosecution.

(d) Subsections (a)(1) and (a)(5) apply to the statement of a child made:

(1) while the child is in a detention facility or other place of confinement;

(2) while the child is in the custody of an officer; or

(3) during or after the interrogation of the child by an officer if the child is in the possession of the Department of Family and Protective Services and is suspected to have engaged in conduct that violates a penal law of this state.

(e) A juvenile law referee or master may perform the duties imposed on a magistrate under this section without the approval of the juvenile court if the juvenile board of the county in which the statement of the child is made has authorized a referee or master to perform the duties of a magistrate under this section.

(f) A magistrate who provides the warnings required by Subsection (a)(5) for a recorded statement may at the time the warnings are provided request by speaking on the recording that the officer return the child and the recording to the magistrate at the conclusion of the process of questioning. The magistrate may then view the recording with the child or have the child view

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the recording to enable the magistrate to determine whether the child's statements were given voluntarily. The magistrate's determination of voluntariness shall be reduced to writing and signed and dated by the magistrate. If a magistrate uses the procedure described by this subsection, a child's statement is not admissible unless the magistrate determines that the statement was given voluntarily.

Credits

Added by Acts 1997, 75th Leg., ch. 1086, § 4, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 982, § 1, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1477, § 1, eff. Sept. 1, 1999; Acts 2001, 77th Leg., ch. 1297, § 7, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 1420, § 21.001(29), eff. Sept. 1, 2001; Acts 2005, 79th Leg., ch. 949, § 5, eff. Sept. 1, 2005; Acts 2007, 80th Leg., ch. 908, § 8, eff. Sept. 1, 2007; Acts 2011, 82nd Leg., ch. 110 (H.B. 841), § 3, eff. May 21, 2011; Acts 2011, 82nd Leg., ch. 1158 (H.B. 2337), § 1, eff. Sept. 1, 2011.

Notes of Decisions (87)

V. T. C. A., Family Code § 51.095, TX FAMILY § 51.095
Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.

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APPENDIX 5

Vernon's Texas Statutes and Codes Annotated
Code of Criminal Procedure (Refs & Annos)
Title 1. Code of Criminal Procedure
Arrest, Commitment and Bail
Chapter Fourteen. Arrest Without Warrant (Refs & Annos)

Vernon's Ann.Texas C.C.P. Art. 14.01

Art. 14.01. Offense within view

Currentness

(a) A peace officer or any other person, may, without a warrant, arrest an offender when the offense is committed in his presence or within his view, if the offense is one classed as a felony or as an offense against the public peace.

(b) A peace officer may arrest an offender without a warrant for any offense committed in his presence or within his view.

Credits

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722, eff. Jan. 1, 1966. Amended by Acts 1967, 60th Leg., p. 1735, ch. 659, § 8, eff. Aug. 28, 1967.

Notes of Decisions (987)

O'CONNOR'S CROSS REFERENCES

See also CCP art. 1.06.

O'CONNOR'S ANNOTATIONS

State v. Barber, __ S.W.3d __, 2026 WL 1073627 (Tex.Crim.App.2026) (No. PD-0510-25; 4-16-26). "Certain statutes authorizing warrantless arrests require that an offense be committed within the arresting person's 'presence' or 'view.' Does a DWI or intoxication-manslaughter offense occur in the officer's 'presence or view' if the officer arrives 40 minutes after the defendant has crashed and is no longer operating his vehicle? Does a public intoxication offense occur in the officer's presence or view if, when the officer arrives, the defendant is no longer at a place in which he poses a danger to himself or others due to his intoxication? The obvious answer to these two questions is 'no'…. [¶] [T]he Legislature specifically intended the 'presence or view' language to add meaning beyond the standard probable-cause requirement (that a crime was committed in the past) that many of the Texas arrest statutes contain. And whatever else the 'presence or view' language might mean, it plainly appears to exclude an officer who did not perceive the offense through one of his five senses and did not arrive at the scene until after the offense was complete and no longer being committed. [¶] In the present case, the officer did not see the accident and was not present when it occurred (arriving 40 minutes later). And while the crime of DWI could be a sufficient offense to justify arrest under [CCP] Art. 14.03(d), and an officer could view such a crime if he merely saw a conscious but intoxicated defendant in the vehicle with the engine running, we cannot conclude that [officer] saw or was present during a DWI. There is in fact no evidence in this record that [D] was even at the scene when the officer arrived, much less that he was in his vehicle with the engine running. All we know from the record is that the officer talked to a witness who saw [D] drink, drive, and collide. … For the same reason, we cannot conclude that [officer] saw the crime of public intoxication…. [¶] [T]he State contended that [officer] could take advantage of the 'collective knowledge' doctrine to find that the offense was committed in his presence or view. This

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doctrine allows the knowledge of other law-enforcement officers to be imputed to the officer who makes the arrest, at least as long as there is some degree of cooperation between them. [¶] To the extent the State might be implying that [officer] could rely upon *non-law-enforcement civilians* as part of a 'collective knowledge,' we have never extended the 'collective knowledge' doctrine that far, and we decline to do so under the facts before us."

Miles v. State, 241 S.W.3d 28, 42 (Tex.Crim.App.2007). "[A] citizen may make a warrantless arrest of a person who commits a misdemeanor within the citizen's presence or view if the evidence shows that the person's conduct poses a threat of continuing violence or harm to himself or the public. It is the exigency of the situation, not the title of the offense, that gives both officer and citizen statutory authorization to protect the public from an ongoing threat of violence, harm, or danger by making a warrantless arrest." Held: Citizen's arrest of D for DWI was legal. *See also* ***Sanchez v. State***, 582 S.W.2d 813, 815 (Tex.Crim.App.1979) (private citizen may, without warrant, arrest person found drunk in public place); ***Heck v. State***, 507 S.W.2d 737, 740 (Tex.Crim.App.1974) (citizen may make arrest without warrant for misdemeanor offense when offense is breach of peace).

State v. Steelman, 93 S.W.3d 102, 107 (Tex.Crim.App.2002). "An offense is deemed to have occurred within the presence or view of an officer when any of his senses afford him an awareness of its occurrence. However, the information afforded to the officer by his senses must give the officer reason to believe that *a particular suspect* committed the offense. *At 108:* The odor of marijuana, standing alone, does not authorize a warrantless search and seizure in a home."

Smith v. State, 491 S.W.3d 864, 870 (Tex.App.--Houston [14th Dist.] 2016, pet. ref'd). "Information received from private citizens who witness a criminal act may be regarded as inherently reliable. This rule also applies if the citizen is the victim of a crime."

Gutierrez v. State, 419 S.W.3d 547, 550 (Tex.App.--San Antonio 2013, no pet.). "A police officer may arrest an individual without a warrant if (1) probable cause exists with respect to the individual in question and (2) the arrest falls within one of the exceptions set out in [CCP] ch. 14…."

Arnold v. State, 971 S.W.2d 588, 589 (Tex.App.--Dallas 1998, no pet.). "The general rule is that a warrantless arrest for DWI will be upheld even if the officer did not see the person driving, if the person committed the offense of public intoxication in the officer's view and there is no proof of sham or fraud."

Givens v. State, 949 S.W.2d 449, 451 (Tex.App.--Fort Worth 1997, pet. ref'd). "The burden of proof is on the State to prove the existence of probable cause to justify a warrantless arrest." *See also* ***Reichaert v. State***, 830 S.W.2d 348, 349 (Tex.App.--San Antonio 1992, pet. ref'd).

Dominguez v. State, 924 S.W.2d 950, 954 (Tex.App.--El Paso 1996, no pet.). "[A] peace officer can make a warrantless arrest only within his geographic or territorial jurisdiction."

Owens v. State, 861 S.W.2d 419, 420 (Tex.App.--Dallas 1993, no pet.). "Except for a speeding offense, an officer may arrest and take into custody a person seen committing a traffic offense."

Vernon's Ann. Texas C. C. P. Art. 14.01, TX CRIM PRO Art. 14.01
Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.

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APPENDIX 6

Vernon's Ann.Texas C.C.P. Art. 14.03

Art. 14.03. Authority of peace officers

Effective: September 1, 2025
Currentness

(a) Any peace officer may arrest, without warrant:

(1) persons found in suspicious places and under circumstances which reasonably show that such persons have been guilty of some felony, violation of Title 9, Chapter 42, Penal Code, breach of the peace, or offense under Section 49.02, Penal Code, or threaten, or are about to commit some offense against the laws;

(2) persons who the peace officer has probable cause to believe have committed an assault resulting in bodily injury to another person and the peace officer has probable cause to believe that there is danger of further bodily injury to that person;

(3) persons who the peace officer has probable cause to believe have committed an offense defined by Section 25.07, Penal Code, if the offense is not committed in the presence of the peace officer;

(4) persons who the peace officer has probable cause to believe have committed an offense involving family violence;

(5) persons who the peace officer has probable cause to believe have prevented or interfered with an individual's ability to place a telephone call in an emergency, as defined by Section 42.062(d), Penal Code, if the offense is not committed in the presence of the peace officer;

(6) a person who makes a statement to the peace officer that would be admissible against the person under Article 38.21 and establishes probable cause to believe that the person has committed a felony; or

(7) a person who the peace officer has probable cause to believe has committed a felony offense while civilly committed as a sexually violent predator under Chapter 841, Health and Safety Code.

(b) A peace officer shall arrest, without a warrant, a person the peace officer has probable cause to believe has committed an offense under Section 25.07, Penal Code, if the offense is committed in the presence of the peace officer.

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(c) If reasonably necessary to verify an allegation of a violation of a protective order or of the commission of an offense involving family violence, a peace officer shall remain at the scene of the investigation to verify the allegation and to prevent the further commission of the violation or of family violence.

(d) A peace officer who is outside his jurisdiction may arrest, without warrant, a person who commits an offense within the officer's presence or view, if the offense is a felony, a violation of Chapter 42 or 49, Penal Code, or a breach of the peace. A peace officer making an arrest under this subsection shall, as soon as practicable after making the arrest, notify a law enforcement agency having jurisdiction where the arrest was made. The law enforcement agency shall then take custody of the person committing the offense and take the person before a magistrate in compliance with Article 14.06 of this code.

(e) The justification for conduct provided under Section 9.21, Penal Code, applies to a peace officer when the peace officer is performing a duty required by this article.

(f) In this article, "family violence" has the meaning assigned by Section 71.004, Family Code.

(g)(1) A peace officer described by Article 2A.001(1), (2), or (5), who is licensed under Chapter 1701, Occupations Code, and is outside of the officer's jurisdiction may arrest without a warrant a person who commits any offense within the officer's presence or view, other than a violation of Subtitle C, Title 7, Transportation Code. [1]

(2) A peace officer described by Article 2A.001(3), who is licensed under Chapter 1701, Occupations Code, and is outside of the officer's jurisdiction may arrest without a warrant a person who commits any offense within the officer's presence or view, except that an officer described in this subdivision who is outside of that officer's jurisdiction may arrest a person for a violation of Subtitle C, Title 7, Transportation Code, only if the offense is committed in the county or counties in which the municipality employing the peace officer is located.

(3) A peace officer making an arrest under this subsection shall as soon as practicable after making the arrest notify a law enforcement agency having jurisdiction where the arrest was made. The law enforcement agency shall then take custody of:

(A) the person committing the offense and take the person before a magistrate in compliance with Article 14.06; and

(B) any property seized during or after the arrest as if the property had been seized by a peace officer of that law enforcement agency.

(h)(1) A peace officer who is acting in the lawful discharge of the officer's official duties may disarm a person at any time the officer reasonably believes it is necessary for the protection of the person, officer, or another individual. The peace officer shall return the handgun to the person before discharging the person from the scene if the officer determines that the person is not a threat to the officer, person, or another individual and if the person has not committed a violation that results in the arrest of the person.

(2) A peace officer who is acting in the lawful discharge of the officer's official duties may temporarily disarm a person when the person enters a nonpublic, secure portion of a law enforcement facility, if the law enforcement agency provides a gun locker

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or other secure area where the peace officer can secure the person's handgun. The peace officer shall secure the handgun in the locker or other secure area and shall return the handgun to the person immediately after the person leaves the nonpublic, secure portion of the law enforcement facility.

(3) For purposes of this subsection, "law enforcement facility" and "nonpublic, secure portion of a law enforcement facility" have the meanings assigned by Section 411.207, Government Code.

Credits

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722, eff. Jan. 1, 1966. Amended by Acts 1967, 60th Leg., p. 1735, ch. 659, § 9, eff. Aug. 28, 1967; Acts 1981, 67th Leg., p. 1865, ch. 442, § 1, eff. Aug. 31, 1981; Acts 1985, 69th Leg., ch. 583, § 2, eff. Sept. 1, 1985; Acts 1987, 70th Leg., ch. 68, § 1, eff. Sept. 1, 1987; Acts 1989, 71st Leg., ch. 740, § 1, eff. Aug. 28, 1989; Acts 1991, 72nd Leg., ch. 542, § 9, eff. Sept. 1, 1991; Acts 1993, 73rd Leg., ch. 900, § 3.02, eff. Sept. 1, 1994; Acts 1995, 74th Leg., ch. 76, § 14.17, eff. Sept. 1, 1995; Acts 1995, 74th Leg., ch. 829, § 1, eff. Aug. 28, 1995; Acts 1999, 76th Leg., ch. 62, § 3.02, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 210, § 2, eff. May 24, 1999; Acts 2003, 78th Leg., ch. 460, § 2, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 836, § 2, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 897, § 1, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 989, § 1, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 1164, § 2, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 1276, § 7.002(d), eff. Sept. 1, 2003; Acts 2005, 79th Leg., ch. 728, § 4.002, eff. Sept. 1, 2005; Acts 2005, 79th Leg., ch. 788, §§ 4, 5, eff. Sept. 1, 2005; Acts 2005, 79th Leg., ch. 847, § 1, eff. Sept. 1, 2005; Acts 2005, 79th Leg., ch. 1015 § 1, eff. Sept. 1, 2005; Acts 2015, 84th Leg., ch. 1133 (S.B. 147), § 5, eff. Sept. 1, 2015; Acts 2021, 87th Leg., ch. 809 (H.B. 1927), § 3, eff. Sept. 1, 2021; Acts 2023, 88th Leg., ch. 765 (H.B. 4504), § 2.013, eff. Jan. 1, 2025; Acts 2025, 89th Leg., ch. 1145 (S.B. 1610), § 9, eff. Sept. 1, 2025.

Notes of Decisions (657)

O'CONNOR'S CROSS REFERENCES

See also ***O'Connor's Texas Family Law Handbook***, "Duties of Law Enforcement," ch. 6-E.

O'CONNOR'S ANNOTATIONS

Armstrong v. State, 713 S.W.3d 893, 895 (Tex.Crim.App.2025). Article 14.03(a)(1) "permits the warrantless arrest of a person found in a suspicious place and under circumstances which reasonably show that an offense has been or is about to be committed. Since the term 'suspicious places' is not defined within the [CCP], some intermediate courts interpret this section to require 'exigent circumstances' for a warrantless arrest, while other courts view exigency as a consideration rather than a necessity. Consequently, the central issue in this case is whether an exigency requirement exists for warrantless arrests. We conclude that it does not."

State v. McGuire, 689 S.W.3d 596, 598 (Tex.Crim.App.2024). "Can a peace officer legally arrest a suspect, without a warrant, for killing another person while driving intoxicated, even though the accident did not occur in the officer's presence? Yes. [CCP art.] 14.03(a)(1) has been interpreted to allow any peace officer to arrest a person found in a 'suspicious place' and the circumstances of the case reasonably show that the person is guilty of a felony or breach of the peace."

York v. State, 342 S.W.3d 528, 535-36 (Tex.Crim.App.2011). "As a city police officer, [officer] was a peace officer as defined by [CCP] art. 2.12(3). The controlling provision with respect to that type of peace officer is [CCP] art. 14.03(g)(2)…. [¶] [Officer] had state-wide authority to arrest for any non-traffic offense committed within his presence or view. Moreover, within [county]--where [officer's city] is located--[officer's] authority to arrest for offenses committed within his presence or view extended to traffic offenses as well. … The question … is whether [officer] had the requisite level of suspicion that … an offense was being or had been committed [to perform an investigative detention]. [¶] Investigative detentions are generally governed by the reasonable suspicion standard. Under the [U.S. Const.] Fourth Amendment, 'reasonable suspicion' exists when an officer is

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aware of 'specific articulable facts that, when combined with rational inferences from those facts, would lead him to reasonably suspect that a particular person has engaged or is (or soon will be) engaging in criminal activity.' This standard is objective; the subjective intent of the officer conducting the detention is irrelevant. In addition, reasonable suspicion does not depend on the 'most likely explanation' for a suspect's conduct, and reasonable suspicion can exist even if the conduct is 'as consistent with innocent activity as with criminal activity.' The standard is logically the same in an art. 14.03(g) context, except that the officer's reasonable suspicion must be limited to whether the suspect is committing, or had committed, an offense in the officer's presence or view." *See also* ***Coleman v. State***, 359 S.W.3d 749, 751-53 (Tex.App.--Houston [1st Dist.] 2011, pet. ref'd); ***Garcia v. State***, 296 S.W.3d 180, 184 (Tex.App.--Houston [14th Dist.] 2009, no pet.).

Gallups v. State, 151 S.W.3d 196, 201 (Tex.Crim.App.2004). "We have held that driving while intoxicated is a breach of the peace. And … we held that a hospital, where the defendant was arrested for driving while intoxicated soon after he was transported there after an accident, was a 'suspicious place' under Art. 14.03(a)(1). Similarly, under the facts of this case, [D's] home, where he was arrested for driving while intoxicated soon after he walked there after abandoning his wrecked truck at the scene of an accident, was a 'suspicious place' under Art. 14.03(a)(1)…."

Dyar v. State, 125 S.W.3d 460, 468 (Tex.Crim.App.2003). "[T]he test under Art. 14.03(a)(1) is a totality of the circumstances test. First, probable cause that the defendant committed a crime must be found and second, the defendant must be found in a 'suspicious place.'"

Yeager v. State, 104 S.W.3d 103, 106 (Tex.Crim.App.2003). "[T]he 'hot pursuit' [of a suspect outside a peace officer's jurisdiction] doctrine [does not apply] only 'where a police officer has the right to arrest'…. *At 107:* Under the 'hot pursuit' doctrine, the relevant consideration [can be] whether the initial 'pursuit' was 'lawfully initiated on the ground of suspicion.'"

Nunez-Marquez v. State, 501 S.W.3d 226, 233 (Tex.App.--Houston [1st Dist.] 2016, pet. ref'd). "'Texas courts have consistently held that erratic driving can rise to the level of a breach of the peace.' Whether conduct constitutes a breach of the peace 'is to be determined on a case-by-case basis, looking to the facts and circumstances surrounding the act.' There are different degrees of erratic driving, and 'the lower range of [erratic driving] would not constitute a breach of the peace in most circumstances.'"

Buchanan v. State, 175 S.W.3d 868, 875-76 (Tex.App.--Texarkana 2005), *rev'd on other grounds*, 207 S.W.3d 772 (Tex.Crim.App.2006). "To hold that a dwelling is a suspicious place solely because it is in poor condition would be tantamount to holding that a car is a suspicious place simply because it needs a tune-up. Admittedly, there is no bright-line rule for determining whether a place is suspicious. Any determination is necessarily fact-specific. [¶] While there are no specific time limits, the Texas Court of Criminal Appeals has said, '[T]he time between the crime and the apprehension of the suspect in a suspicious place is an important factor.' In finding a place as suspicious, 'one factor seems to be constant throughout the case law. The time frame between the crime and the apprehension of a suspect in a suspicious place is short.' [D] was arrested four weeks after the robbery took place. A span of nearly a month between an alleged crime and the arrest of a suspect in a particular place is far from short and does not lead to the conclusion that the place is suspicious." *See also* ***Cook v. State***, 509 S.W.3d 591, 604 (Tex.App.--Fort Worth 2016, no pet.) (courts have held homes to be suspicious places when eyewitness to offense followed D to home afterwards), *abrogated on other grounds*, ***Armstrong v. State***, 713 S.W.3d 893 (Tex.Crim.App.2025).

Footnotes

1 V.T.C.A., Transportation Code § 541.001 et seq.

Vernon's Ann. Texas C. C. P. Art. 14.03, TX CRIM PRO Art. 14.03

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APPENDIX 7

Vernon's Ann.Texas C.C.P. Art. 42.03

Art. 42.03. Pronouncing sentence; time; credit for time spent in jail between arrest and sentence or pending appeal

Effective: January 1, 2021
Currentness

Sec. 1. (a) Except as provided in Article 42.14, sentence shall be pronounced in the defendant's presence.

(b) The court shall permit a victim, close relative of a deceased victim, or guardian of a victim, as defined by Article 56A.001, to appear in person to present to the court and to the defendant a statement of the person's views about the offense, the defendant, and the effect of the offense on the victim. The victim, relative, or guardian may not direct questions to the defendant while making the statement. The court reporter may not transcribe the statement. The statement must be made:

(1) after punishment has been assessed and the court has determined whether or not to grant community supervision in the case;

(2) after the court has announced the terms and conditions of the sentence; and

(3) after sentence is pronounced.

(c) The court may not impose a limit on the number of victims, close relatives, or guardians who may appear and present statements under Subsection (b) unless the court finds that additional statements would unreasonably delay the proceeding.

Sec. 2. (a) In all criminal cases the judge of the court in which the defendant is convicted shall give the defendant credit on the defendant's sentence for the time that the defendant has spent:

(1) in jail for the case, including confinement served as described by Article 46B.009 and excluding confinement served as a condition of community supervision, from the time of his arrest and confinement until his sentence by the trial court;

(2) in a substance abuse treatment facility operated by the Texas Department of Criminal Justice under Section 493.009, Government Code, or another court-ordered residential program or facility as a condition of deferred adjudication community supervision granted in the case if the defendant successfully completes the treatment program at that facility; or

(3) confined in a mental health facility or residential care facility as described by Article 46B.009.

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(b) In all revocations of a suspension of the imposition of a sentence the judge shall enter the restitution due and owing on the date of the revocation.

Sec. 3. If a defendant appeals his conviction, is not released on bail, and is retained in a jail as provided in Section 7, Article 42.09, pending his appeal, the judge of the court in which the defendant was convicted shall give the defendant credit on his sentence for the time that the defendant has spent in jail pending disposition of his appeal. The court shall endorse on both the commitment and the mandate from the appellate court all credit given the defendant under this section, and the Texas Department of Criminal Justice shall grant the credit in computing the defendant's eligibility for parole and discharge.

Sec. 4. When a defendant who has been sentenced to imprisonment in the Texas Department of Criminal Justice has spent time in jail pending trial and sentence or pending appeal, the judge of the sentencing court shall direct the sheriff to attach to the commitment papers a statement assessing the defendant's conduct while in jail.

Sec. 5. Except as otherwise provided by Article 42A.106(b), the court after pronouncing the sentence shall inform the defendant of the defendant's right to petition the court for an order of nondisclosure of criminal history record information under Subchapter E-1, Chapter 411, Government Code, [1] unless the defendant is ineligible to pursue that right because of the requirements that apply to obtaining the order in the defendant's circumstances, such as:

(1) the nature of the offense for which the defendant is convicted; or

(2) the defendant's criminal history.

Sec. 6. Repealed by Acts 1989, 71st Leg., ch. 785, § 4.24, eff. Sept. 1, 1989.

Sec. 7, 8. Deleted by Acts 1993, 73rd Leg., ch. 900, § 5.03, eff. Sept. 1, 1993.

Credits

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722. Amended by Acts 1967, 60th Leg., p. 1743, ch. 659, § 28, eff. Aug. 28, 1967; Acts 1973, 63rd Leg., p. 205, ch. 91, § 1, eff. Aug. 27, 1973; Acts 1977, 65th Leg., p. 1036, ch. 382, § 1, eff. Aug. 29, 1977; Acts 1977, 65th Leg., p. 2076, ch. 827, § 1, eff. Aug. 29, 1977; Acts 1981, 67th Leg., p. 353, ch. 141, § 1, eff. Sept. 1, 1981; Acts 1981, 67th Leg., p. 809, ch. 291, § 113, eff. Sept. 1, 1981; Acts 1981, 67th Leg., p. 2418, ch. 616, § 1, eff. Aug. 31, 1981; Acts 1983, 68th Leg., p. 3792, ch. 586, § 4, eff. Aug. 29, 1983; Acts 1983, 68th Leg., p. 4666, ch. 809, § 1, eff. Aug. 29, 1983; Acts 1985, 69th Leg., ch. 232, § 13, eff. Sept. 1, 1985; Acts 1989, 71st Leg., ch. 785, § 4.06, eff. June 15, 1989; Acts 1989, 71st Leg., ch. 848, § 1, eff. June 14, 1989; Acts 1989, 71st Leg., ch. 1040, §§ 1, 2 eff. Aug. 28, 1989; Acts 1991, 72nd Leg., ch. 16, § 4.05, eff. Aug. 26, 1991; Acts 1991, 72nd Leg., ch. 278, § 1, eff. June 5, 1991; Acts 1991, 72nd Leg., 2nd C.S., ch. 10, §§ 14.01, 14.02, 14.03, 14.04, 15.03 eff. Oct. 1, 1991; Acts 1991, 72nd Leg., 2nd C.S., ch. 10, § 8.02, eff. Dec. 1, 1991; Acts 1993, 73rd Leg., ch. 900, § 5.03, eff. Sept. 1, 1993; Acts 1995, 74th Leg., ch. 556, § 1, eff. Sept. 1, 1995; Acts 2003, 78th Leg., ch. 406, § 2, eff. Sept. 1, 2003; Acts 2007, 80th Leg., ch. 1205, § 1, eff. Sept. 1, 2007; Acts 2009, 81st Leg., ch. 87, § 25.018, eff. Sept. 1, 2009; Acts 2011, 82nd Leg., ch. 718 (H.B. 748), § 1, eff. Sept. 1, 2011; Acts 2011, 82nd Leg., ch. 822 (H.B. 2725), § 1, eff. Sept. 1, 2011; Acts 2015, 84th Leg., ch. 770 (H.B. 2299), § 2.12, eff. Jan. 1, 2017; Acts 2015, 84th Leg., ch. 1279 (S.B. 1902), § 15, eff. Sept. 1, 2015; Acts 2017, 85th Leg., ch. 324 (S.B. 1488), § 23.002, eff. Sept. 1, 2017; Acts 2019, 86th Leg., ch. 437 (S.B. 1268), § 1, eff. Sept. 1, 2019; Acts 2019, 86th Leg., ch. 469 (H.B. 4173), § 2.13, eff. Jan. 1, 2021.

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Notes of Decisions (401)

O'CONNOR'S ANNOTATIONS

Ex parte Thiles, 333 S.W.3d 148, 149 (Tex.Crim.App.2011). "We … address the applicant's claim that he is entitled to credit against his prison sentence for a lengthy period of time during which he was allowed to remain at large on an appellate bond even though, unbeknownst to him, the appellate mandate affirming his conviction had long since issued. Should he receive the credit he now seeks, the applicant will have discharged his sentence and would be entitled to immediate release. We will grant relief."

Johnson v. State, 286 S.W.3d 346, 347 (Tex.Crim.App.2009). "[A] trial judge [does not have] the discretion to impose jail time as a condition of community supervision immediately after he has heard unsworn, un-cross-examined victim-allocution statements that they wanted [D] to go to jail. … The pertinent statute is both clear and explicit: Art. 42.03 requires that the victim-allocution statement be read *after* the sentence has been imposed and '*after* the court has announced the terms and conditions of the sentence.' This error was not harmless. We therefore reverse the court of appeals…." *See also* ***Aldrich v. State***, 296 S.W.3d 225, 259 (Tex.App.--Fort Worth 2009, pet. ref'd).

Ex parte Rodriguez, 195 S.W.3d 700, 703 (Tex.Crim.App.2006). "[A]pplicant is permitted to show that he was detained in this cause by some means other than formal detainer. We conclude that the letter from the U.S. Department of Justice asserting that applicant was arrested by Mexican authorities based upon the provisional arrest request that it had previously filed on behalf of TDCJ is such other means of showing that he was detained in this cause when held by Mexican authorities. *At 704:* [A]pplicant is entitled to receive jail-time credit for the time between his arrest in Mexico and his return to the custody of TDCJ authorities."

Taylor v. State, 131 S.W.3d 497, 502 (Tex.Crim.App.2004). "[T]he order granting [D] deferred adjudication was set aside. [D] was not sentenced until his guilt was adjudicated. At that time, the judge did not orally pronounce a fine, but included a fine within the written judgment. When there is a conflict between the two, the oral pronouncement controls. Since the judge did not orally assess a fine as part of [D's] sentence when guilt was adjudicated, the Court of Appeals was correct to delete the fine from the judgment." *See also* ***Thompson v. State***, 108 S.W.3d 287, 290 (Tex.Crim.App.2003) (without oral pronouncement, there is no valid judgment to appeal and court of appeals lacks jurisdiction); ***Coffey v. State***, 979 S.W.2d 326, 329 (Tex.Crim.App.1998) (oral pronouncement is unnecessary in probation revocation); ***Shuler v. State***, 650 S.W.3d 683, 686 (Tex.App.--Dallas 2022, no pet.) (oral pronouncement is necessary if fine is assessed when D is placed on deferred adjudication), *abrogated on other grounds*, ***Bradshaw v. State***, 707 S.W.3d 412 (Tex.Crim.App.2024); ***Venegas v. State***, 560 S.W.3d 337, 354 (Tex.App.--San Antonio 2018, no pet.) (due process requires that sentence that was orally pronounced is sentence that D will be required to serve).

Ex parte Hale, 117 S.W.3d 866, 867 (Tex.Crim.App.2003). "The issue in this case is whether the applicant should be given credit on a subsequent sentence for the time during which he was erroneously released on mandatory supervision when he should have continued to be imprisoned under the previous sentence." Held: No credit should be given.

Ex parte Harvey, 846 S.W.2d 328, 329 (Tex.Crim.App.1993). "No requirement exists for the trial court to detail the reasons for the award of credits for time spent in jail prior to sentencing other than the documentation required in [CCP] art. 42.09, §8, … provided that such credit does not exceed the time between date of commission of the offense and the imposition of sentence."

Ex parte Green, 688 S.W.2d 555, 557 (Tex.Crim.App.1985). "We do not think that in enacting Art. 42.03, §2(a) the Legislature intended that an individual initially detained as a juvenile and later certified an adult, then prosecuted and sentenced accordingly, should be treated any differently than one who is initially detained as an adult."

Pittman v. State, 683 S.W.3d 433, 435 (Tex.App.--San Antonio, pet. granted 9-24-25). "[D] argues his sentencing via videoconference is defective because it violates [CCP] art. 42.03[,] §1(a) … and it violates his constitutional right to be

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physically present for sentencing. *At 438:* [T]he State concedes [D] was not physically present for sentencing. The State nevertheless contends [D] did not object to being sentenced via videoconference, and therefore, he waived the issue. … We recognize neither [D] nor his counsel objected to sentencing via videoconference. However, … the only exception to pronouncing the sentence in a felony case without the defendant physically present is under [CCP] art. 42.14(b). [D] did not write to the trial court expressly waiving the right to his physical presence at the rendering of the judgment and sentence. Nor did he enter into a plea agreement. We therefore cannot conclude … that [D] at any time waived his statutory right to his physical presence at sentencing. *At 439:* Because [D] did not affirmatively waive his right to be physically present, and because no state emergency orders permitted the trial court to abrogate [D's] right to his presence, there is no proper sentence in the record, and this court therefore lacks jurisdiction."

Martinez v. State, 427 S.W.3d 496, 498 (Tex.App.--San Antonio 2014, no pet.). "The issue in this case is whether the time [D] spent in jail between arrest and sentencing may be credited toward satisfaction of the confinement imposed as a condition of his community supervision." Held: Requirement under CCP art. 42.03 that defendant be given credit on sentence does not apply to confinement imposed as condition of community supervision under CCP art. 42.12, §13(a)(1), now arts. 42A.401, 42A.402.

In re Risley, 190 S.W.3d 853, 854 n.2 (Tex.App.--Fort Worth 2006, orig. proceeding). "A felony defendant may not waive the right to be present at sentencing. Thus, relator cannot be deemed to have waived the requirement of art. 42.03, §1(a) by voluntarily absenting himself from trial."

Tagorda v. State, 977 S.W.2d 632, 634 (Tex.App.--Fort Worth 1998, no pet.). "[A] criminal defendant is not entitled to receive credit on his sentence for time spent on electronic monitoring as a condition of bond before sentencing."

Footnotes

1 V.T.C.A., Government Code § 411.071 et seq.

Vernon's Ann. Texas C. C. P. Art. 42.03, TX CRIM PRO Art. 42.03
Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.

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